RESOLUTION MSC.243(83)
(adopted on 12 October 2007)
ESTABLISHMENT OF INTERNATIONAL LRIT DATA EXCHANGE
ON AN INTERIM BASISMSC 83/28/Add.2

I:\MSC\83\28-Add-2.doc

ANNEX 7

RESOLUTION MSC.243(83)
(adopted on 12 October 2007)

ESTABLISHMENT OF INTERNATIONAL LRIT DATA EXCHANGE
ON AN INTERIM BASIS

THE MARITIME SAFETY COMMITTEE,

RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,

RECALLING ALSO the provisions of regu lation V/19-1 (the regulation) of the International Convention for the Safety of Life at Sea, 1974, as amended (the Convention) on the Long-range identification and tr acking (LRIT) of ships and, in particular, that, as from 31 December 2008, ships shall transmit and Contracting Governments to the Convention (Contracting Governments) shall be able to receive, pursuant to the provisions of the regulation, LRIT information transmitted by ships,

BEARING IN MIND that the conditions for th e entry into force of regulation V/19-1 have been met and the regulation will enter into force on 1 January 2008,

LRIT information transmitted by ships,

BEARING IN MIND that the conditions for th e entry into force of regulation V/19-1 have been met and the regulation will enter into force on 1 January 2008,

RECALLING FURTHER the Performance st andards and functional requirements on long-range identification and tracking of ships (the Performance standards) adopted by resolution MSC.210(81), in particular, section 10 on the International LRIT Data Exchange,

ALSO RECALLING the Arrangements for the tim ely establishment of the LRIT system adopted by resolution MSC.211(81) and, in particular, that the In ternational LRIT Data Centre and the International LRIT Da ta Exchange should commence trials and testing of the LRIT system not later than 1 July 2008,

MINDFUL of the key and pivotal role of the International LRIT Data Exchange in the LRIT system architecture,

DESIRING to put the necessary arrangements in place so as to ensure that the LRIT system becomes fully operational, as planned, on 31 December 2008,

NOTING that the proposal for the establishmen t of the International LRIT Data Centre

DESIRING to put the necessary arrangements in place so as to ensure that the LRIT system becomes fully operational, as planned, on 31 December 2008,

NOTING that the proposal for the establishmen t of the International LRIT Data Centre and the International LRIT Data Exchange whic h was presented for consideration did not find, during its eighty-third session, favour amongst the Contracting Governments,

HAVING CONSIDERED, at its eighty-third se ssion, as a result of the developments, a contingency offer from the United States in re lation to the establishment and operation of the International LRIT Data Exchange on an inte rim basis and until such time the Committee would be able to make the necessary permanent arrangements,

RESOLUTION MSC.243(83)
(adopted on 12 October 2007)
ESTABLISHMENT OF INTERNATIONAL LRIT DATA EXCHANGE
ON AN INTERIM BASISMSC 83/28/Add.2
ANNEX 7
Page 2

I:\MSC\83\28-Add-2.doc

1. RECOGNIZES (in view of the fact that th e Contracting Governments have accepted the offer of the United States to host, build and operate, on an interim and temporary basis the

1. RECOGNIZES (in view of the fact that th e Contracting Governments have accepted the offer of the United States to host, build and operate, on an interim and temporary basis the International LRIT Data Exchange) pursuant to paragraph 10.1 of the Performance standards the aforesaid exchange as the International LRIT Data Exchange referred to in the Performance standards subject to the terms and conditions set out in the Annex to the present resolution;

2. AGREES that, bearing in mind that the conti ngency offer from the Un ited States is only an interim arrangement and a permanent solu tion should be found for the International LRIT Data Exchange as soon as possible (within two years as from 1 January 2008 subject to a further review by the Committee), it will start, no later than at its ei ghty-fourth session, arrangements for seeking a solution for the es tablishment and operation of the International LRIT Data Exchange on a permanent basis;

3. REQUESTS the Secretariat to prepare, fo llowing any necessary consultations with the

arrangements for seeking a solution for the es tablishment and operation of the International LRIT Data Exchange on a permanent basis;

3. REQUESTS the Secretariat to prepare, fo llowing any necessary consultations with the United States, a draft resolution on the establishment of an International LRIT Data Exchange on an interim basis, within the framework of regulation V/19-1.14, for cons ideration and adoption by the Committee at its eighty-fourth session.

RESOLUTION MSC.243(83)
(adopted on 12 October 2007)
ESTABLISHMENT OF INTERNATIONAL LRIT DATA EXCHANGE
ON AN INTERIM BASISMSC 83/28/Add.2
ANNEX 7
Page 3

I:\MSC\83\28-Add-2.doc
ANNEX

ESTABLISHMENT OF INTERNATIONAL LRIT DATA EXCHANGE
ON AN INTERIM BASIS

The International LRIT Data Exch ange should be established and operated by the United States under the following conditions:

1 The International LRIT Data Exchange s hould comply with the salient aspects of:

(1) regulation V/19-1;

(2) the Performance standards;

(3) the technical standards and specifications approved by the Committee;

(4) the criteria for the location of the International LRIT Data Centre and the

(1) regulation V/19-1;

(2) the Performance standards;

(3) the technical standards and specifications approved by the Committee;

(4) the criteria for the location of the International LRIT Data Centre and the International LRIT Data Exchange; and

(5) any guidance in relation to financial and operational matters issued by the Committee.

2 The International LRIT Data Exchange would be provided by the United States at their own expense and, in this respect, the United States has clarified that its present intention was that consistent with their domestic laws and pr ocurement regulations, the capital, operating and maintenance costs for the interim International LRIT Data Exchange would be borne by the United States. Their intention was that none of the LRIT Data Centres and none of the Contracting Governments would be required to make any payment to the United States for the services provided by the International LRIT Data Exchange.

3 The United States, while not withdrawing their reservation, duri ng the eighty-second session of the Committee, with respect to th e decision of Committee in relation to the

services provided by the International LRIT Data Exchange.

3 The United States, while not withdrawing their reservation, duri ng the eighty-second session of the Committee, with respect to th e decision of Committee in relation to the appointment of the Internationa l Mobile Satellite Organization as the LRIT Co-ordinator, will co-operate fully and will meet all its obligations vis-à-vis IMSO as LRIT Co-ordinator in respect of participation of IMSO in the initial developm ental testing and in connection with the audit of the performance of the Internati onal LRIT Data Exchange within the framework established by regulation V/19-1 and section 14 of the Performance standards.

4 The Contracting Governments agree that the United States does not assume any form of liability in case of any technical failure of the International LRIT Data Exchange. However, the LRIT information should be secured and not be accessible.

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